

Court No. - 3

Case :- WRIT - C No. - 13624 of 2016

Petitioner :- Sm. Neelima Tiwari

Respondent :- State Of U.P. And 4 Ors.

Counsel for Petitioner :- Hanuman Prasad Dube, Venu Gopal

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Krishna Murari, J.

Hon'ble Vinod Kumar Misra, J.

Put up this matter as fresh, if possible, day after tomorrow before another Bench of which one of us (Krishna Murari, J.) is not a member, after obtaining nomination from the Hon'ble the Chief Justice.

Order Date :- 29.3.2016

AS

Court No. - 10

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Petitioner :- Sm. Neelima Tiwari

Respondent :- State Of U.P. And 4 Ors.

Counsel for Petitioner :- Hanuman Prasad Dube, Venu Gopal

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Arun Tandon, J.

Hon'ble Amar Singh Chauhan, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Sri S.A. Ansari, learned counsel appearing for respondents no. 2 and 3.

This petition has been filed for quashing of the Recovery Notice No. 613 dated 2.2.2016, issued by the respondent no. 3, electricity authority in exercise of powers under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958.

We find that the recovery is sought to be challenged without challenging the main order of assessment/electricity consumption bill issued in respect of the connection granted in favour of the petitioner. It is settled law that consequential recovery cannot be questioned without challenging the main assessment/bills issued and, therefore, we see no reason to interfere.

Learned counsel for the petitioner pointed out that an incorrect bill was issued to the petitioner on 11.5.2013 and that he had filed his objections against the said bill which have not been considered.

In our opinion, a right has been conferred upon the consumer to challenge the electricity bills under Clause 6.5 of the Electricity Supply Code 2005, However, such challenge can be made only after comply with the conditions mentioned in Clause 6.5 of the Code. Unless such conditions are satisfied the objection to the bill would not be competent.

In the totality of the circumstances on record, we only provide that if any objections are filed by the appellant in compliance with the requirements of Clause 6.5 ("if the appellant is made competent after deposit the requisite money") the same shall be considered and decided by the authority preferably within a period of four weeks from the date the objections are so filed by means of a reasoned order.

Order Date :- 31.3.2016

Puspendra